

Court No. - 40

Case :- WRIT - C No. - 20524 of 2021

Petitioner :- Shishir Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Nand Lal Pandey, Suyash Pandey

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Manoj Misra, J.

Hon'ble Jayant Banerji, J.

Heard Sri N.L. Pandey for the petitioner; learned Standing Counsel for respondent no.1 and Sri Udit Chandra for respondent nos. 3 and 4.

The petitioner had an electricity connection with reference to which a bill was raised by the Purvanchal Vidyut Vitran Nigam Limited (in short, Nigam). Disputing the same, the petitioner filed Writ-C No.52633 of 2017, which was disposed of by giving liberty to the petitioner to invoke provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005 (for short 'Code 2005').

The case of the petitioner is that an application was moved pursuant to the order passed by this Court which remained pending.

Sri Udit Chandra, learned counsel appearing for the Nigam submits that from the documents on record, it appears that the supply continued and bills were raised but they were partly paid by the petitioner and now, again, bill/disconnection notice has been issued to the petitioner raising a demand of Rs. 41,902/ including arrears.

Learned counsel for the petitioner submits that the supply is being incorrectly charged as for commercial use when in fact it is for running a pumping set.

Be that as it may, as from the record it does not appear to us that the grievance of the petitioner has yet been addressed by the respondent-Nigam, we deem it appropriate to dispose of this petition by giving liberty to the petitioner to take recourse to the remedy available under Clause 6.5 of the Code, 2005. If any such application as contemplated under Clause 6.5 of the Code, 2005 is submitted by the petitioner within two weeks from today, the same shall be addressed and decided on merits as per law, preferably, within a period of six weeks from the date of filing of such application. The petition stands **disposed of**.

Order Date :- 28.9.2021

sfa/